

Terms and Conditions

1. Definitions:

Claim means any actual, contingent, present or future claim, demand or proceeding for any Liability or any other remedy of whatever nature, whether direct or indirect, and whether in contract, tort (including but not limited to negligence) or otherwise;

Confidential Information means information, whether in visual, oral, documentary, electronic, machine-readable, tangible, intangible or any other form, relating to Fairybread & Fractions Pty Ltd, the Services or any related entity of Fairybread & Fractions Pty Ltd including but not limited to any information relating to any business, products, markets, operations, processes, techniques, technology, strategies or any other matter;

Fees means the charges for the Services as nominated by Fairybread & Fractions Pty Ltd from time to time;

Intellectual Property means any present or future rights conferred by statute, common law or equity in any part of the world in relation to any sensory activities, sensory props, recordings, music, confidential information, copyright, trademarks, service marks, designs, patents, business names, domain names, inventions, trade secrets or other results of intellectual activity in any industrial, commercial, scientific, literary or artistic fields;

Law means *Child Wellbeing and Safety Act 2005* (NSW) and any other statute, act, regulation or rule applicable to the Services as amended, consolidated, supplemented or replaced;

Liability means any loss, liability, cost, payment, damages, debt or expense (including but not limited to reasonable legal fees);

Parent means **you** or any other person responsible for the Student by way of your authority;

Personnel means any employee, servant, contractor, subcontractor, agent, partner, director or officer of Fairybread & Fractions Pty Ltd;

Services means the services provided to the Student during the Sessions, including educational tuition in maths and English, in consideration for payment of the Fees;

Sessions means the period during which the Services are provided;

Session Times means the scheduled times for provision of the Services during the Term as agreed by Fairybread & Fractions Pty Ltd;

Student means the student/Student of which you are legal guardian enrolled for the Services;

T&C's means these Terms and Conditions in relation to the Services;

Term means the school term as determined by Fairybread & Fractions Pty Ltd, and includes the times, days and locations of the Sessions offered for one (1) term in relation to the Services;

Fairybread & Fractions Pty Ltd means Fairybread & Fractions Pty Ltd, Glenbrook

Website means the website of Fairybread & Fractions Pty Ltd
<https://thereselorens.wixsite.com/tutoring>

2. Application:

These T&Cs constitute the full and complete agreement between the Parent (you) and Fairybread & Fractions Pty Ltd. These T&C's will apply to any use by the Parent and/or the Student of the Services, as applicable.

3. Fairybread & Fractions Pty Ltd :
The Services vary depending on the Student's specific needs and are subject to information and feedback from you, the Student and the Student's schoolteacher. Fairybread & Fractions Pty Ltd does not provide any guarantee as to outcomes for the Student.

You acknowledge and agree that Personnel are not responsible for the care and supervision of your Student.

Therese Lorens of Fairybread & Fractions Pty Ltd is registered with VIC Institute of Teaching and all Personnel hold a current Working With Children Check.

Fairybread & Fractions Pty Ltd is subject to the NSW Student Safe Standards and will comply with the Law.

4. Bookings:
Prior to commencement of the Services and at any other time requested by Little School Foundation or if any details previously provided by you change, you must complete a booking form in respect to the Student. It is your responsibility to promptly provide to Fairybread & Fractions Pty Ltd all relevant information, instructions and matters relevant to the provision of the Services and performance of the obligations of Fairybread & Fractions Pty Ltd contained in these T&C's.

Enrolment will be for the Term. Bookings should be made as early as possible to secure the Student's preferred Session Time. A deposit of \$50 is payable at the time of booking, which amount will be deducted from the balance Fees payable. Fairybread & Fractions Pty Ltd Little School Foundation reserves the right to reject any booking or enrolment without liability.

Term dates are set at the discretion of Fairybread & Fractions Pty Ltd and as notified from time to time. If the Student is continuing with Fairybread & Fractions Pty Ltd for a subsequent Term, you must re-book for a new Term. There is no guarantee of a particular Session Time being available.

Whilst Fairybread & Fractions Pty Ltd will endeavour to provide the same tutor at each Session during the Term, it reserves the right to provide a replacement or temporary tutor (for example if the tutor is ill or on leave).

If a Session is cancelled or affected by some circumstance outside the control of Fairybread & Fractions Pty Ltd, you will be notified as soon as practical. Fairybread & Fractions Pty Ltd will endeavour to reinstate the Session Time as soon as practical. Fairybread & Fractions Pty Ltd will not be liable in such circumstances.

5. Fees and Payment:

Unless otherwise agreed by Fairybread & Fractions Pty Ltd in writing, the Fees will be the amount notified when making the booking. A deposit of \$50 is payable upon booking to secure the Session Time for each Term.

The balance of the Fees are payable to Fairybread & Fractions Pty Ltd prior to commencement of the first Session in the applicable Term. If booking for a Term, you must pay for the entire Term in advance. If the Term has already commenced, then enrolment will be for the remaining weeks of the Term and the Fees are charged pro rata. Failure to make payment of the Fees may result in suspension or cancellation of the Session Time for the remainder of the Term.

All payments must be made by cash or direct bank transfer as notified by Fairybread & Fractions Pty Ltd. Payments must be cleared at least 24 hours before the first Session in the Term.

Fees quoted are subject to change and include Goods and Services Tax (GST).

In the event of overdue payment, Fairybread & Fractions Pty Ltd reserves the right to charge interest at the rate from time to time fixed by the *Penalty Interest Rates Act 1983* (NSW) on any overdue payments, calculated daily until the money is paid, and recover the amount of any costs (including legal expenses) in the recovery of any outstanding amounts owed.

6. Your obligations:

You are responsible for the Student at all times.

You must ensure that your Student is collected promptly at the conclusion of each Session. Fairybread & Fractions Pty Ltd Personnel will be attending to other children attending the following session, they cannot be responsible for the Student outside of Session Times.

You will be liable for any damage or destruction to any property caused by you, the Student or any children in your care whilst in attendance at Fairybread & Fractions Pty Ltd.

You must never leave your Student unattended before or after Sessions. The Student (including any additional children you may have with you at the time) are your responsibility at all times. Fairybread & Fractions Pty Ltd will take no responsibility for supervision of the Student outside the Student's Session Time.

Parents and visitors must comply with Fairybread & Fractions Pty Ltd policies and procedures. A copy will be provided upon request.

7. Cancellations:

In the unlikely event that a session is cancelled by Fairybread & Fractions Pty Ltd, Fairybread & Fractions Pty Ltd will offer an additional session.

Where a Parent has cancelled a Session with minimum 24 hours' notice to Fairybread & Fractions Pty Ltd, Fairybread & Fractions Pty Ltd will endeavour to provide a make-up session subject to availability. A maximum of one (1) make-up session is available per Term. Any make-up sessions must be used within the subject Term and will expire at the end of such Term. No make-up sessions or credit will be given for cancellations without minimum 24 hours' prior notice to Fairybread & Fractions Pty Ltd. No refunds will be given for unused Sessions.

If you have been instructed by a medical practitioner that the Services may interfere with the Student's current medical (including allied health services) treatment, Fairybread & Fractions Pty Ltd may allow cancellation for the balance of the Term and provide a refund, upon provision of an appropriate medical certificate.

8. Termination:

Fairybread & Fractions Pty Ltd may terminate provision of the Services immediately and without notice if:

- (a) You breach a term of these T&C's as reasonably determined by Fairybread & Fractions Pty Ltd;
- (b) You or the Student is responsible for bullying or harassment, as reasonably determined by Fairybread & Fractions Pty Ltd ;
- (c) The Term ends and you have not made a booking for a following Term.

These T&Cs will carry over and continue to apply to any additional Term in relation to the Student for provision of ongoing Services, subject to any amendments to these T&Cs at the discretion of Fairybread & Fractions Pty Ltd.

9. Circumstances outside the control of Fairybread & Fractions Pty Ltd:

Fairybread & Fractions Pty Ltd will not be liable to you for any failure to perform, or delay in performing Little School Foundation obligations under these T&Cs if the failure or delay is due to any cause beyond Fairybread & Fractions Pty Ltd reasonable control. If any such failure or delay continues for a period of 14 days Fairybread & Fractions Pty Ltd may terminate any affected Service.

10. Confidentiality, Intellectual Property and Privacy:

The parties will not use or disclose any Confidential Information disclosed by the other party unless required by law.

All Intellectual Property rights in all designs, drawings, specifications, know how, technical information and documents created by Fairybread & Fractions Pty Ltd in relation to the Services will remain with Fairybread & Fractions Pty Ltd and will not be assigned to you and no provision of Services to you will grant you any Intellectual Property rights in respect of the Services.

You acknowledge and agree that photographs and video recordings may be taken of the Student participating in Sessions, in which photographs are the property of Fairybread & Fractions Pty Ltd or commissioned by Fairybread & Fractions Pty Ltd

and may be used for promotional and advertising purposes, unless you notify Fairybread & Fractions Pty Ltd otherwise. No Student will be identified by name in photographs used for promotional or advertising purposes.

You acknowledge and agree that you will not take a photograph or video recording which includes other participating children without prior consent of such child's parent.

Any personal information you provide to Fairybread & Fractions Pty Ltd will be collected and held in accordance with the Australian Privacy Principles and is capable of being destroyed or de-identified at your request. You should refer to our Privacy Policy for further information.

This clause survives termination of these T&Cs.

11. Safety and First Aid:

Due to government regulations, Fairybread & Fractions Pty Ltd will not administer any medication to the Student. You agree that Personnel may administer basic first aid in the event of minor injury (such as band aid, icepack). In the event of emergency, you agree that an ambulance may be called.

Fairybread & Fractions Pty Ltd will use its best endeavours to ensure that the equipment, ingredients, stationery and any other items or goods supplied or used in the provision of the Services are safe and fit for purpose.

12. Food and other Allergens:

No food should be brought to Fairybread & Fractions Pty Ltd premises. Students are permitted to bring unflavoured water only.

13. Representations and warranties:

You warrant to Fairybread & Fractions Pty Ltd that you acknowledge and agree that:

- (a) some physical contact may be necessary by the Personnel to demonstrate activities during Sessions or to administer first aid;
- (b) any information or instruction you provide to Fairybread & Fractions Pty Ltd (in any booking form or otherwise) is complete, true and correct;
- (c) the Student has not at any time suffered blackout, seizure, convulsion, fainting, dizzy spells or any other medical condition;
- (d) the Student is not presently receiving treatment for any illness, disorder or injury;
- (e) the Student is not prone or easily susceptible to illness or injury;
- (f) Fairybread & Fractions Pty Ltd will not be responsible for any accident or injury;
- (g) Fairybread & Fractions Pty Ltd is not responsible for loss or damage of property;
- (h) Fairybread & Fractions Pty Ltd will not be responsible for the care and welfare of the Student (such as feeding, changing, using the toilet).

14. Liability:

Any Liability of Fairybread & Fractions Pty Ltd or Claim in relation to these T&Cs, any contract or supply of the Services (whether under statute, contract, tort, negligence or

otherwise) will be limited to any proven Claim and the amount of the Fees paid by you to Fairybread & Fractions Pty Ltd.

Fairybread & Fractions Pty Ltd will not be liable to you for any Liability or Claim of any kind arising directly or indirectly (whether under statute, contract, tort, negligence or otherwise) in relation to any indirect or consequential loss or any remote, abnormal or unforeseeable loss or any similar loss whether or not in the reasonable contemplation of the parties.

This clause survives termination of these T&Cs.

15. Release and indemnity:

You indemnify Fairybread & Fractions Pty Ltd and its Personnel from and against any Liability or Claim arising directly or indirectly in relation to:

- (a) the accuracy of all information provided by you to Fairybread & Fractions Pty Ltd in relation to the Student, the Services or any other matters;
- (b) your breach of these T&Cs;
- (c) your negligence or wilful misconduct;
- (d) any injury sustained by the Student or any other child or person during provision of the Services or as a result;
- (e) the use of photographs or video footage;
- (f) you purporting to cancel these T&Cs.

This clause survives termination of these T&Cs.

16. Miscellaneous:

The parties agree:

- (a) these T&Cs may only be amended with express written agreement of Fairybread & Fractions Pty Ltd ;
- (b) the rights of Fairybread & Fractions Pty Ltd under these T&Cs do not exclude any other rights of Fairybread & Fractions Pty Ltd;
- (c) the actions of any person claiming to have your authority will bind the Parent to the extent permitted by law;
- (d) if any provision of these T&Cs is unenforceable, the provision will be severed, and the remaining provisions will continue to apply;
- (e) Fairybread & Fractions Pty Ltd may assign any rights or benefits under these T&Cs to any third party;
- (f) the failure by Fairybread & Fractions Pty Ltd to require performance by you of any provision contained in these T&Cs will not waive the right to require such performance;
- (g) unless otherwise expressly agreed by Fairybread & Fractions Pty Ltd, or as set out in these T&Cs, this is the entire agreement between the parties and supersedes any other communications or representations, whether written or oral;
- (h) these T&Cs may be updated from time to time by Fairybread & Fractions Pty Ltd without notice; and
- (i) these T&Cs will be governed by the laws of NSW and the parties submit to the jurisdiction of the courts of the state of New South Wales.

Fairybread & Fractions Pty Ltd
49 Moore St Glenbrook NSW 2773
Phone: 0425 339 869
Email: fairybreadandfractions@gmail.com

I acknowledge and agree to the terms and conditions as set out above

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Signature

Name [please print]

Date: